

Intro to Human Sciences- Spring 2026

Political Science Module- Lecture 2

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State

Defining The State

- Essential elements of State- **Territory, Population, Government, Sovereignty**
- The state is a **political association** that establishes **sovereign jurisdiction** within defined **territorial borders**, and exercises **authority** through a set of permanent **institutions**.
- These institutions are those that are recognizably '**public**', in that they are responsible for the **collective organization** of communal life, and are funded at the **public's expense**.
- The state thus embraces the various institutions of government, but it also extends to the courts, nationalized industries, social security system, and so forth; it can be identified with the entire 'body politic'.

State

Origin of State

- **Divine Right** - The doctrine that earthly rulers are chosen by God and thus wield unchallengeable authority; a defence for monarchical absolutism.
- **Social Contract Theory**- A social contract is a voluntary agreement made amongst individuals through which an organized society, or state, is brought into existence.

State

Role of the State

- **Minimal State-** The state is merely a protective body, its core function being to provide a framework of peace and social order within which citizens can conduct their lives as they think best.
- A **developmental state** is one that intervenes in economic life with the specific purpose of promoting industrial growth and economic development.
- Whereas developmental states practise interventionism in order to stimulate economic progress, **social-democratic states** intervene with a view to bringing about broader social restructuring, usually in accordance with principles such as fairness, equality and social justice.
- While developmental and social-democratic states intervene in economic life with a view to guiding or supporting a largely private economy, **collectivized states** bring the entirety of economic life under state control.
- The essence of **totalitarian state** is the construction of an all-embracing state, the influence of which penetrates every aspect of human existence. The state brings not only the economy, but also education, culture, religion, family life and so on under direct state control.

Government

Meaning

- Government in its broadest sense, refers to any mechanism through which ordered rule is maintained, its central features being the ability to make collective decisions and the capacity to enforce them.
- However, the term is more commonly understood to describe the formal and institutional processes that operate at the national level to maintain public order and facilitate collective action.
- The core functions of government are, thus, to make law (**legislation**), implement law (**execution**) and interpret law (**adjudication**). In some cases, the political executive alone is referred to as ‘the government’.

Government

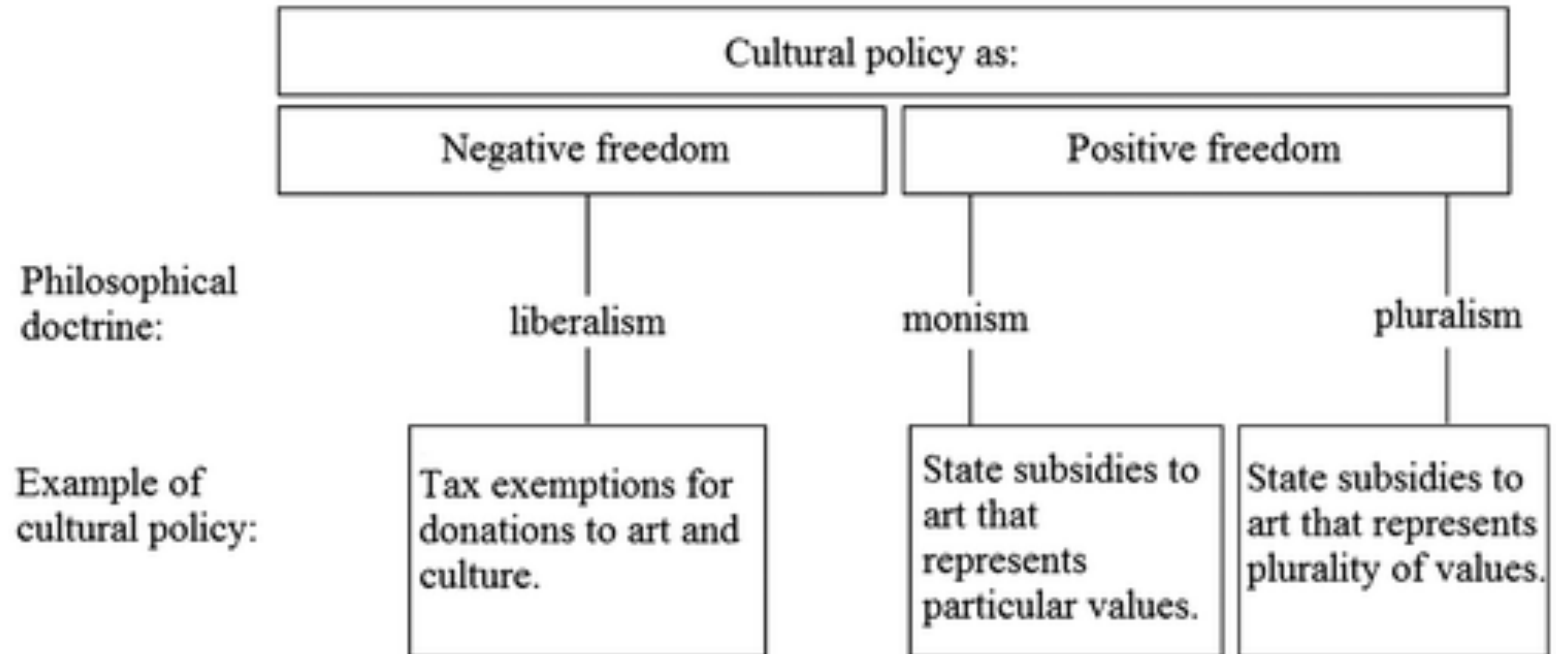
Types of Government/ Political System

- Monarchy (Constitutional and Absolute)
- Democracy (Parliamentary and Presidential)
- Communism
- Socialism
- Aristocracy
- Oligarchy
- Military Dictatorship
- Theocracy
- Totalitarianism
- Colonialism

Liberty

Meaning and Interpretation

- the notion of choice,
- the absence of constraints to make and exercise such a choice,
- the existence conditions that enable you to actuate the choice.



Equality

Meaning and Interpretation

- Equality is not about blanket uniformity, but rather is about ‘levelling’ those conditions of social existence which are thought to be crucial to human well-being.
- The goal of **egalitarians** is to establish the legal, political or social conditions in which people will be able to enjoy equally worthwhile and satisfying lives.
- **Legal Equality**- The principle of legal equality, or ‘**equality before the law**’ holds that the law should treat each person as an individual, showing no regard to their social background, religion, race, colour, gender and so forth.
- Justice, in this sense, should be ‘blind’ to all factors other than those relevant to the case before the court, notably the evidence presented.

Equality

Meaning and Interpretation

- **Equality of Opportunity-** ‘Right to be unequal’, focus on chances
- **Equality of Outcome-** Focus on rewards
- **Equality of Welfare-** Fulfil everyone’s welfare equally irrespective of the inequality entailed in the distribution of resources.
- **Equality of Resources-** A distributional scheme should treat people as equals ‘when it distributes or transfers the resources’.
- **Equality of Capabilities-** A capability is the ability to achieve a certain sort of function. For example, literacy is a capability, while reading is a function.

Justice

Meaning and Interpretation

- Justice, in short, is about giving each person what he or she is ‘due’. However, it is much more difficult to define what that ‘due’ might be.
- Justice is an ‘essentially contested’ concept. No settled or objective concept of justice exists, only a set of competing concepts.
- In everyday language, in fact, justice is used so imprecisely that it is taken to mean ‘fairness’, ‘rightness’ or, simply, that which is ‘morally correct’. Without doubt, justice is a moral or normative concept: that which is ‘just’ is certainly morally ‘good’, and to call something ‘unjust’ is to condemn it as morally ‘bad’
- Two forms of justice can be identified at work in the legal process.
- **First**, there is **procedural justice**, which relates to how the rules are made and applied. Procedural justice requires the presumption that the accused is ‘innocent until proved guilty’.
- **Second**, there is **substantive justice**, which is concerned with the rules themselves and whether they are ‘just’ or ‘unjust’. Notions of justice vary from individual to individual, from group to group, from society to society, and from period to period.

Rights

Meaning and Interpretation

- Simply speaking, a right is to get ‘one’s due’, i.e. to get what is due to someone as a human, citizen, individual or as a member of a group, etc. To have a right, then, is to be entitled to do something or to have something done; for example, to vote, to speak, to avail of healthcare, etc.
- **Negative rights** are rights that entail non-interference from the society at large. For example, the right to liberty, life, property, etc. The right to life prevents others from killing me but it does not obligate them to do anything positive to assist me in living my life to the full or to live happily.
- **Positive rights** are rights that impose obligations on other people or the state to do some- thing for a fuller enjoyment of our rights. For example, the right to health, basic subsistence, etc. requires positive interference to do something.

Rights

Human Rights

- (i) *security rights* that protect people against crimes such as murder, massacre, torture and rape;
- (ii) *liberty rights* that protect freedom in areas such as belief, expression, association, assembly and movement;
- (iii) *political rights* that protect the liberty to participate in politics through actions such as communicating, assembling, protesting, voting and serving in public office;
- (iv) *due process rights* that protect against abuses of the legal system such as imprisonment without trial, secret trials and excessive punishments;
- (v) *equality rights* that guarantee equal citizenship, equality before the law and non-discrimination; and
- (vi) *welfare rights* (or ‘economic and social rights’) that require the provision of education to all children and protections against severe poverty and starvation.